

		than Orange County. Such material are not appropriate for consideration in assessing a challenge to the pleadings. <u>Alter Ego allegations</u> – Defendant moves to strike what she describes as “conclusory” allegations of alter ego liability. The FAC contains sufficiently pleaded allegations of alter ego liability for purposes of a challenge to the pleadings. (See, e.g., <i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 235-236 [“Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only ‘ultimate rather than evidentiary facts.’”].) Accordingly, the FAC sufficiently alleges the ultimate facts sufficient to plead alter ego liability. The motion is DENIED as to alter ego allegations. <u>Punitive Damages and Emotional Distress Allegations/Prayer</u> – Defendant argues that facts warranting imposition of punitive damages have not been adequately alleged. The FAC sufficiently alleges causes of action for false promises and fraud, which are sufficient predicate causes of action for imposition of punitive damages and emotional distress damages. No demurrer has been filed challenging the sufficiency of the fraud causes of action. Accordingly, the motion is DENIED as to punitive damages and emotional distress damages allegations. <u>Duplicative/Irrelevant Allegations</u> – The motion is DENIED as to any purportedly duplicative and conclusory allegations. As an initial matter, it is impossible to ascertain what material Defendant seeks to strike from the FAC based upon the notice of motion. Moreover, the motion is essentially an improper attempt to use Code Civ. Proc. §436 as a “line-item veto”. (See <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1683.) Defendant shall file an Answer to the First Amended Complaint within 30 days of notice of this ruling. The Case Management Conference is CONTINUED to August 20, 2026, at 9:30 a.m. in Department C12. Plaintiff shall provide notice.
11.	Stewart Title Guaranty Company vs. Wilbourn 25-01516717	1. Demurrer to Complaint (x3) 2. Motion to Strike Portions of Complaint (x3) 3. Case Management Conference OFF CALENDAR. CASE IS STAYED. See ROA 133